MAHATMA GANDHI UNIVERSITY, KOTTAYAM

MGU-UGP (HONOURS) REGULAR/IMPROVEMENT/REAPPEARANCE

EXAMINATION APRIL 2026

SECOND SEMESTER

Discipline Specific Core Course (DSC) – MG2DSCJMC101 – LEGAL REGIME ON MEDIA

(2024 ADMISSION ONWARDS)

Answer Scheme

Duration: 2 Hours **Maximum Marks: 70**

Part A – Multiple Choice Questions (1 Mark Each)

1. B) To fix and review the wages of journalists
2. B) 3 years
3. C) Written defamation
4. C) Upholding national sovereignty and integrity
5. C) Preserving the freedom of the press
6. B) They do not air content that harms national security or public morality
7. D) Both a and b
8. D) 28
9. D) To provide educational, informative, and entertainment programs on public channels
10. D) A, B & C

Part B – Short Answer Question (3 Marks Each)

11. **Press and Registration of Books Act, 1867 regulates the publication of books and newspapers in terms of accountability and transparency. Elucidate.**
    - Requires declaration before a Magistrate by printer/publisher.
    - Mandatory disclosure of printer, publisher, and place of printing.
    - Registration of newspapers maintained by authorities.
    - Helps identify responsibility for published content.
    - Ensures transparency and legal accountability.

12. **Explain the consequences for cable operators who fail to comply with compulsory transmission of channels under the Act.**
    - Violation may attract penalties under the Cable Television Networks (Regulation) Act.
    - Authorities can suspend or cancel registration/license.

- Fine and imprisonment may be imposed.
- Government may seize equipment in serious violations.

13. State the distinction between FIR and Chargesheet.

FIR

- First Information Report
- Filed at beginning of case
- Records commission of offence
- Registered under Section 154 CrPC

Chargesheet

- Final report after investigation
- Filed after police investigation
- Submitted to court by police
- Contains evidence and accused details

14. Write a short note on Official Secrets Act, 1923

- Enacted to protect state secrets and national security.
- Prohibits sharing confidential government information.
- Punishes espionage and unauthorized communication of secret documents.
- Criticized for limiting transparency and press freedom

15. Outline the main requirements for the registration of a newspaper under the Press and Registration of Books Act, 1867.

- Declaration before District Magistrate.
- Details of owner, editor, printer, and publisher required.
- Name and place of publication must be specified.
- Copies to be submitted to authorities after publication.

16. Discuss the role of the Information Technology Act in regulating content published on digital media platforms.

- Provides legal framework for electronic communication.
- Regulates cybercrimes and unlawful online content.
- Intermediaries must remove unlawful material when directed.
- Protects data and digital transactions.

17. State the penalty for harbouring spies.

- Punishable under the Official Secrets Act, 1923.

- Imprisonment may extend up to several years.
- Fine may also be imposed.
- Harbouring or assisting spies is treated as a serious offence against national security.

18. Recognise the limitations or challenges faced by journalists in accessing information under the RTI Act

- Delay in replies from authorities.
- Exemptions related to national security and confidential matters.
- Lack of transparency by officials.
- Threats, harassment, or denial of information

19. State the rules as to payment of gratuity under the Working Journalists Act, 1955.

- Journalists completing continuous service are eligible for gratuity.
- Paid on retirement, resignation, disability, or death.
- Amount depends on length of service and wages.
- Employer is legally bound to make payment.

20. Discuss the role of the Broadcasting Council in maintaining programming standards under the Prasar Bharati Act.

- Monitors broadcast content and public complaints.
- Ensures fairness, neutrality, and quality in programmes.
- Advises Prasar Bharati regarding ethical standards.
- Protects public interest in broadcasting.

21. Describe the term in-camera proceedings.

- Court proceedings conducted privately.
- Public and media are excluded.
- Used in sensitive matters like sexual offences or national security.
- Protects privacy and confidentiality.

22. Write a note on hours of work of working journalists.

- Regulated under the Working Journalists Act.
- Maximum working hours fixed to prevent exploitation.
- Provision for weekly holidays and leave.
- Ensures welfare and proper working conditions.

Part C – Essay Type Questions(15 Marks Each)

23. Examine the procedure for filing complaint and its redressal under the Press Council Act.

- Press Council of India was established under the Press Council Act to preserve freedom of press and maintain ethical standards in journalism.
- Any person can file complaint against newspapers, editors, or journalists for unethical reporting.
- Complaints must be filed within the prescribed time limit.
- Complaint should contain complete details, facts, and supporting documents.
- Press organizations can also file complaints against authorities interfering with press freedom.
- The Council first examines the admissibility of the complaint.
- Notice is issued to the concerned parties.
- Both sides are given opportunity for hearing and defence.
- Evidence, reports, and documents are carefully evaluated during inquiry.
- The Council may warn, admonish, or censure newspapers and journalists for unethical practices.
- It may direct publication of apology, correction, or clarification.
- Decisions of the Council promote ethical journalism though they are not enforceable like court orders.
- The Council protects freedom of the press and encourages responsible journalism.
- It helps maintain public confidence in media and ensures accountability in reporting.
- The Press Council acts as a watchdog balancing press freedom with responsibility and ethical standards

24. Describe the provisions of the Cable Television Networks Act, 1995 related to programme code, advertisement code and compulsory transmission of channels.

- The Cable Television Networks (Regulation) Act, 1995 regulates cable television broadcasting in India.
- The Act ensures proper regulation of cable television networks and content.
- Programme Code states that programmes should not offend morality, decency, or religious sentiments.
- Content against national integrity, sovereignty, and security is prohibited.
- Obscene, defamatory, violent, or anti-social content is not allowed.
- Advertisement Code prohibits misleading advertisements.
- Advertisements should not promote superstition, obscenity, or harmful products.
- Advertisements must maintain fairness, decency, and social responsibility.
- Cable operators are required to compulsorily transmit notified Doordarshan channels.

- This ensures public access to public service broadcasting and government information.
- Violation of the Act may result in fine and Imprisonment
- Cancellation or suspension of registration
- The Act promotes responsible broadcasting practices.
- It protects public interest, cultural values, and viewers from harmful content.
- The Act ensures balanced regulation of cable television networks in India

25. Illustrate your arguments regarding the abolition of the Official Secrets Act

- The Official Secrets Act, 1923 was enacted during British rule to protect confidential government information.
- The Act aims to prevent leakage of sensitive official information related to the government
- Many argue that the Act is colonial in nature and outdated in modern democratic society.
- It is criticised for restricting freedom of press and freedom of expression.
- The Act is considered inconsistent with the Right to Information Act, which promotes transparency and public access to information..
- Critics argue that the Act has been misused to suppress investigative journalism and whistle-blowers.
- Lack of clear definition of “secret information” creates ambiguity and misuse.
- Supporters argue that the Act is necessary for protecting national security.
- It helps prevent espionage, spying, and leakage of confidential information.
- The Act safeguards defence, intelligence, and strategic operations of the country.
- Many experts suggest reform rather than complete abolition of the Act
- There is a need to replace it with a modern law ensuring both transparency and security..
- Classified and confidential information should be clearly defined.
- A balance must be maintained between national security and democratic accountability.
- Many suggest reforming the Act to protect both citizens’ right to information and the security interests of the nation.

26. Discuss the main provisions in the Cinematograph Act, 1952.

- The Cinematograph Act, 1952 regulates certification and exhibition of films in India.
- The Act provides legal control over public exhibition of films.
- Films are certified by the Central Board of Film Certification (CBFC).
- The CBFC examines films before public release.

- Categories of film certification include: U – Universal viewing, UA – Parental guidance for children, A – Adults only, S – Restricted to a specific class of persons
- Certification may be refused or cuts may be ordered if film:
  Threaten national security
  Affect public order
  Harm morality or decency
  Promote obscenity or excessive violence
- The government has power to revise, suspend, or review certification in certain situations
- The Act also regulates cinema theatres through licensing procedures.
- Safety standards and conditions for exhibition of films are maintained under the Act.
- The Act helps protect public morality, social values, and cultural interests.
- It attempts to balance creative freedom of filmmakers with public interest and social responsibility.
- The Act remains an important legislation regulating film certification and exhibition in India